

Bihar State Non Government Recognised Sanskrit School (up to Madhyama Standard) Non-teaching staff Service Conditions Rules, 2015

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Bihar State Non Government Recognised Sanskrit School (up to Madhyama Standard) Non-teaching staff Service Conditions Rules, 2015

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Bihar State Non Government Recognised Sanskrit School (up to Madhyama Standard) Non-teaching staff Service Conditions Rules, 2015

Rule

BIHAR-STATE-NON-GOVERNMENT-RECOGNISED-SANSKRIT-SCHOOL-UP-TO-MADHYAMA-STANDARD-NON-TEACHING-STAFF-SERVICE-CONDITIONS-RULES-2015 of 2015

Published on 13 February 2015

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Bihar State Non Government Recognised Sanskrit School (up to Madhyama Standard) Non-teaching staff Service Conditions Rules, 2015

Published vide Notification No. 10/Mu 1-53/2014-100, dated 13.02.2015

Last Updated 8th February, 2020

No. 10/Mu 1-53/2014-100 - In exercise of the powers conferred under Section 22 of Bihar Sanskrit Shiksha Board Act, 1981 (Bihar Act No. 31, 1982), the Governor of Bihar is pleased to make the following rules to regulate the service conditions of the Non-teaching staff of the Non-Government Sanskrit School(up to Madhyama Standard) as follows :-

1.

Short title, extent and commencement.

(1)

These Rules shall be called the "Bihar State Non Government Recognised Sanskrit School (up to Madhyama Standard) Non-teaching staff Service Conditions Rules, 2015.

(2)

It shall extend to the Recognised Non-Government Sanskrit Schools (Up to Madhyama Standard) of the whole of the state of Bihar.

(3)

It shall come into force from at once.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context:-

(i)

'the Government' means Government of Bihar.

(ii)

'Department' means Education Department.

(iii)

'Act' means Bihar Sanskrit Shiksha Board Act, 1981.

(iv)

'Board' means Bihar Sanskrit Shiksha Board, constituted under the Act, 1981.

(v)

'Chairman' means Chairman of the Bihar Sanskrit Shiksha Board.

(vi)

'Secretary' means Secretary of the Bihar Sanskrit Shiksha Board.

(vii)

'Recognition' means Recognised Non-Government Sanskrit School (up to Madhyama Standard) from the Government of Bihar, Education Department, Patna.

(viii)

'School' means Recognized Non-Government Sanskrit School(up to Madhyama Standard) from the Education Department.

(ix)

'Managing Committee' means School Managing Committee of Non- Government Sanskrit School (up to Madhyama Standard) constituted under the School Managing Committee Rules, 2015.

(x)

'Recognised Non-Government Sanskrit School (up to Madhyama Standard) means: -

(i)

Recognised Non-Government Primary Sanskrit School: -From Class I to V

(ii)

Recognised Non-Government Middle Sanskrit School:-From Class VI to VIII

(iii)

Recognised Non-Government Primarycum Middle Sanskrit School :-From Class I to VIII

(iv)

Recognised Non-Government Madhyamik Sanskrit School: -From Class VI to X

(v)

Recognised Non-Government Primary Cum High Sanskrit School - From Class I to X

(xi)

'Non-teaching staff means employee other than teacher.

3.

Hierarchy and Sanctioned Strength of Non-teaching Staff of Recognised Non-Government Sanskrit School (up to Madhyama Standard).

- (i) Recognised Non-Government Sanskrit Middle School - 01 (one) Peon.

(ii)

Recognised Non-Government Primary-Cum-Middle Sanskrit School - 01 (one) Peon.

(iii)

Recognised Non-Government Madhyamik Sanskrit School - 01 (one) Clerk + 01 (one) Peon.

(iv)

Recognised Non-Government Primary Cum High Sanskrit School - 01 (one) Clerk + 01 (one) Peon.

4.

Reservation.

- The reservation policy enforced in the State time to time shall be followed in the appointment of Non-teaching employees of Recognised Non-Government Sanskrit School (Madhyama Standard) of the State.

5.

Appointment and Process of appointment/Recruitment.

(1)

All the appointments for non-teaching post shall be made after the post advertised in at least two main Hindi daily News Papers the State level.

(2)

The School shall obtain prior approval of the Secretary Bihar Sanskrit Shiksha Board on format of advertisement. In addition to other things name of the post of advertisement, vacancy as per reservation roster, required eligibility, achievement and other related qualification shall be specified in the format.

(3)

School Managing Committee, shall prepare a list of applications and call the candidates for interview by issuing notice through registered post within 15 days who shall be found eligible as per advertisement. The date of interview shall be fixed by the members of the Committee in the General Meeting specially called for.

The Committee shall fix the date of interview and give prior information to the Chairman/Secretary, Bihar Sanskrit Shiksha Board, Patna with respect of the aforesaid interview. The Chairman/Secretary, Bihar Sanskrit Shiksha Board, Patna or his representative will participate in the said meeting. The School Managing Committee shall not conduct interview in absence of representation of the Board. A merit list shall be prepared after the interview which shall be duly signed by all the members.

(4)

If a candidate is relative of Headmaster or any member/expert then such a Headmaster or member/expert shall give prior information to the Board before interview with respect to his actual relation and shall not participate in the interview. If participated in the interview and concealed the above fact, then appointment of his concerned relative shall be deemed to be illegal but appointment of others shall not be affected.

(5)

That Committee shall prepare a panel of candidates appeared in the interview in respect of every post to be filled up on the basis of marks obtained in the interview and weight age points in the educational qualification by the respective candidates.

Marks for merit shall be counted as follows: -

Sl.No.

Interview :- 20 Marks

Education Qualification: -80 Marks.

01

Interview conducted by the Managing Committee will be of 20 Marks.

(a) For the post of

Clerk- maximum 80 marks obtained in intermediate.

(b) For the post of Peon- maximum 80 marks obtained in the Metric.

(6)

Determination of marks of educational/teaching qualification shall be done as follows :-

(1)

For the post of clerk (maximum- 80 marks) :- Marks obtained in Intermediate examination :-

(a)

45 % to 59 %

:-

60 marks

(b)

60 % to 74 %

:-

70 marks

(c)

75 % and above

:-

80 marks

(2)

For the post of peon (maximum- 80 marks) :- Marks obtained in Matric examination :-

(a)

45 % to 59 %

:-

60 marks

(b)

60 % to 74 %

:-

70 marks

(c)

75 % and above

:-

80 marks

Note. - Educational qualification passed with minimum second division is compulsory for the above mention posts.

(7)

Committee shall send three list of panel of candidates within one week of interview to the Secretary, Bihar Sanskrit Shiksha Board, Patna for approval of the Board with the following documents- (i) A copy of advertisement (ii) Merit list of all applicants

(iii)

Table wise description of all the applicants, eligibility and other specializations (iv) Photo copy of original application of all applicants and letter of appreciation and annexure.

(8)

The Secretary, Bihar Sanskrit Shiksha Board shall verify the recommendations of the Committee and will return back to the committee within a month after giving approval or non-approval or after changing & correcting the merit list and in that case reasons shall be assigned by the Secretary.

(9)

If Committee is aggrieved by the decision of the Secretary may present an appeal before the Special Director, Secondary Education, Bihar, Patna within 60 days of such decision.

(10)

In case of any dispute arising out of their appointment may prefer an appeal and the same shall be settled by Special Director, Secondary Education, Bihar, Patna.

6.

Eligibility.

- (i) Recognised Non-Government Sanskrit Middle School - 01 (one) Peon-Matric Pass.

(ii)
Recognised Non-Government Primary-Cum-Middle Sanskrit School-01 (one) Peon-Matric Pass.

(iii)
Recognised Non-Government Madhyamik Sanskrit School -

(a)
01 (one) Clerk-Intermediate Pass

(b)
01 (one) Peon- Matric Pass.

(iv)
Recognised Non-Government Primary Cum High Sanskrit School -

(a)
01 (one) Clerk-Intermediate Pass

(b)
01 (one) Peon- Matric Pass.

7.
Probation and Period.

- The appointment, if not temporary shall be made initially for the period of two years on probation and appointment under probation shall be made only in the permanent vacancy.

8.
Confirmation.

- If the work and conduct of probationer found satisfactory during the probation period then the Committee shall confirm him by the end of period of two years. If the work and conduct of concerned person is not satisfactory in the opinion of the Committee then the Committee shall decide Whether probation period be extended for a year or service be terminated before the completion of probation period.

9.
Age.

(1)
Minimum age shall be the 18 years in Middle/Primary Cum Middle/Madhyamik/Primary Cum High Sanskrit School for the appointment of any person, Maximum age limit will be the same as this prescribed by the State Government (General Administration Department) time to time.

(2)
A person appointed on any post of non-teaching shall retire after completion of 62 years of age.

10.
Disciplinary Action.

(1)
The Committee shall be competent to take disciplinary action and award major or minor punishment to any non-teaching staff.

But before imposing punishment the employee shall be given proper opportunity for explanation regarding his case. The person aggrieved by the decision of the Committee may prefer an appeal within 60 days before the Chairman, Bihar Sanskrit Shiksha Board and the Chairman, Bihar Sanskrit Shiksha Board after hearing all the parties shall deliver his decision which will be final.

(2)
The Committee may impose to any person including person under probation following punishment:-

(a)
Minor Punishment - Admonition/Censor

(b)
Major Punishment -

(i)
Reduction in rank

(ii)

Removal from service

(iii)

Dismissal

(3)

The Committee may provide an opportunity for giving due written explanation to the person concerned for his conduct.

(4)

Before imposing major punishment of any kind fully described charge sheet shall be prepared by the President and Secretary of the Committee and the Committee shall take decision by resolution. The charge so framed shall be specific and all relevant facts shall be mentioned therein so that it must be easy to understand to the person concerned about the charges levelled against him. Where Prima facie allegation is very serious and the Committee feels that:-

(a)

It shall be undesirable in view of the discipline and common interest of the school to keep such a person in the service of the school, or

(b)

The person concerned may tamper or distort the school records or may create other damages to the property or accessories of the school, then the Committee may decide to suspend such a person by Special Resolution.

(5)

The person on whom proceeding initiated shall be given in writing about the allegation labelled against him within one week of suspension under Rule 10 (iv) and he shall have to give explanation within 15 days from the date of receipt of Charge sheet. The meeting of the Committee shall be called for within 15 days from the date of receipt of explanation and for this notice of 10 days shall be sent to every member by register post or by special messenger. The quorum of the meeting will be completed by two third members of the present total number of members.

(6)

No Non-teaching Staff shall be suspended for more than 03 months without consent of the Chairman/Secretary, Bihar Sanskrit Shiksha Board, Patna. During period of suspension he shall get subsistence allowance which shall be the half of his monthly salary and Dearness allowance.

(7)

The Committee, after due consideration on explanation and opportunity to be heard on request of the person concerned may decide specifically under para 10(ii) to impose major punishment or discharge from the allegations specified. In case of discharge from the allegations the period of suspension will be treated as the period of work done and full salary and allowance of the said period shall be given. If the Committee, decides to impose any punishment under major punishment then the Committee will specifically decide whether period of suspension will be treated as period of work done or not.

(8)

All the records and speaking order of the proceeding shall be sent to the Bihar Sanskrit Shiksha Board before actual execution of such punishment in all the cases in which the Committee decides to impose any punishment out of major punishment. The person aggrieved by the decision of the Committee may prefer an appeal within 60 days before the Chairman, Bihar Sanskrit Shiksha Board and the Chairman, Bihar Sanskrit Shiksha Board after hearing all the parties shall deliver his decision and if any person aggrieved with the decision of the Board or Chairman he may prefer an appeal within 60 (Sixty) days before the Special Director, Secondary Education and the Special Director after giving full opportunity to hear the aggrieved and concerned person shall deliver his decision.

11.

Leave.

- In addition to fixed leave the non teaching staff of Recognised Non- Governmental Sanskrit School will be entitled to get the following leaves.

(i)

Casual Leave - In every Calendar year Twelve days casual leave will be admissible to every non-teaching staff of Recognised Non-Government Sanskrit School.

Headmaster of the School will sanction the casual leave of all Non-teaching staff of the School. In one time casual leave will be sanctioned for maximum seven days only and fixed leave in between the period of casual leave will not be

counted as part of the casual leave.

(ii)

Earn Leave - (a) Every Non-teaching staff of the school will earn three days leave on full day for the working period of every calendar year. If will not be admissible for the non-teaching staff having less than three years of service. Non-teaching staff of the school will earn a maximum of 120 days earn leave. Leave earn more than 120 days will be lapsed.

(b)

Every Non-teaching staff of the school will earn twenty days leave on half pay for working period of every calendar year. It will not be lapsed. It can be converted into full pay on medical certificate and will be half of this leave.

Headmaster of the school will sanction the earn leave of all non-teaching staff of the school.

(iii)

Study leave - Confirm Non-teaching staff of the school can get three years study leave without pay in their whole tenure. Study leave will not affect the service condition of the Non-teaching staff.

Headmaster of the School will sanction the study leave to the non teaching staff.

(iv)

Maternity leave - Ninety days maternity leave will be admissible to female staff for only two children. Headmaster of the School will sanction the Maternity leave of nonteaching staff.

(v)

Special leave - In every month two days special leave will be admissible for female staff and it will be sanctioned by the Headmaster of the school.

12.

Miscellaneous.

(1)

Maintenance of Service Book - In every school service book of every non-teaching staff will be maintained. Headmaster of the School will attest the Service-Book of all non-teaching staff of the school. The secretary of Bihar Sanskrit Shiksha Board will verify the service books of all non-teaching staff of the School.

(2)

Annual confidential Report-In every school Annual Confidential Report of every non-teaching staff will be maintained. Annual Confidential Report will be written every year after the end of the Session. Headmaster of the School will write the Annual Confidential Report of the Non-teaching staff of the School and will send the Annual Confidential Report to the School Managing Committee who will note his remarks in a particular year. if there is adverse remark in Annual confidential Report for any nonteaching staff. he will he informed within three months of starting of next session. If the non-teaching staff think so that the adverse remarks are not based on factual grounds, then may prefer an appeal within 60 days before the Chairman, Bihar Sanskrit Shiksha Board, and the Chairman, Bihar Sanskrit Shiksha Board after giving full opportunity to hear the aggrieved shall deliver his decision and if any person aggrieved with the decision of the Board or Chairman he may prefer an appeal within 60 (Sixty) days before the Special Director, Secondary Education and the Special Director after giving full opportunity to hear the aggrieved and concerned person shall deliver his decision.

13.

Repeal & saving.

(1)

All the previous service condition Rules, Resolution, orders and instructions are here by repealed.

(2)

Not with standing such repeal, anything done or any action taken under the previous Rules, Resolution, order, instructions, shall be down or taken under these Rules as at these Rules were come in to force on such date when such thing was done or such action was taken.

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